

		Manuel both filed creditor claims. Manuel filed petition against Francille in her capacity as trustee of Carolyn's separate property trust. Francille filed her own petition for appointment as executor. After David died, Audrey filed petition seeking her own letters of administration. Francille prevailed and appointed executor. Pending.
21PR8425	08/24/21	David's spousal property petition. Francille, Rodd and David Jr. objected. After David died, Audrey substituted in as David's executor. Pending.
21PR8452	11/12/21	Audrey's petition to probate David's estate, and for letters testamentary. The petition was approved, and Audrey was appointed executor. Pending.
21DV45739	12/15/21	Manuel's petition for protection (DVRO) against Francille's husband Rodd. Petition denied.
22CV46053	05/31/22	Francille and David Jr's complaint for partition of Burson residence, and rent, against Audrey in her capacity as trustee of David's trust. Pending.

Before the Court is a motion to quash Manuel's business record subpoenas seeking all records, communications, signature cards, beneficiary designations, and statements for accounts belonging to Carolyn "and/or" David Jr. "and/or" Francille, from (1) Transamerica Corporation, (2) Wells Fargo Bank, (3) Wells Fargo Advisors Financial Network, (4) Pacific Cascade Federal Credit Union, (5) Bank of Stockton, (6) Comenity Capital Bank, and (7) Charles Schwab & Co. The singular basis stated for the motion to quash is that the records sought invade the privacy rights belonging to David Jr. and Francille.

The subject subpoenas were issued by Manuel in 21PR8424. The subpoenas were presumably for the purpose of discovering evidence in relation to Manuel's First Amended Petition to enforce Carolyn's alleged oral promise to gift to Manuel APNs 048-025-031, 048-025-038, and 048-025-040. As alleged, after serving two tours of duty in Iraq, Manuel returned stateside to serve in the Air Force Reserves and work as a pharmacist in Texas. Because Carolyn and David Sr. were unable to effectively work the cattle ranch, they allegedly made him an offer: *leave your life in Texas and come live/work on the Ranch, contributing labor and finances as needed, and we will leave the Ranch to you.* Manuel accepted the offer in 2008, moving to the Ranch. Unbeknownst to Manuel, on 08/02/16 his mother Carolyn executed various deeds moving the Ranch into her separate property revocable trust, and directed those assets elsewhere. Manuel contends that Carolyn (or rather her estate) is liable under §850 and principals of promissory estoppel to make good on that promise. Manuel's creditor

claim, filed 09/21/21, is based on the same theory of promissory estoppel, although he attributes a dollar amount to the share of the ranch he was allegedly promised.

It is unclear to this Court how banking records would reflect upon the existence or nonexistence of the alleged oral agreement to devise or otherwise gift the Ranch to Manuel. Although Manuel has a presumptive right to inquire about any matter which – based on reason, logic and common sense – might (1) be admissible, (2) lead to admissible evidence, or (3) reasonably assist that party in evaluating the case, preparing for trial and/or facilitating resolution (see *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557), there is a counterbalance to this broad right to discovery in the Constitutional right to privacy. (See Calif. Const. Art. 1, §1; and *County of Los Angeles v. Los Angeles County Employee Relations Commission* (2013) 56 Cal.4th 905, 927; *Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1039.) Thus, Manuel must generally show a particularized need for the confidential information sought, to wit: the information is directly relevant to a party's cause of action, essential to a fair determination of the action, AND not available through alternative, less-intrusive means. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 859). Considerations should include “the purpose of the information sought, the effect that disclosure will have on the parties and on the trial, the nature of the objections urged by the party resisting disclosure, and ability of the court to make an alternative order which may grant partial disclosure, disclosure in another form, or disclosure only in the event that the party seeking the information undertakes certain specified burdens which appear just under the circumstances.” (*Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, 658; *Fortunato v. Superior Court* (2003) 114 Cal.App.4th 475, 480.)

Based on the papers, Manuel is seeking the financial records in order to establish that Carolyn stole from David, but since Audrey is David's personal representative, she is the proper person for requesting these records in this case vis-à-vis David's creditor claim, which does not appear to have ever been acted upon, or in David's probate (21PR8452) or (to a lesser extent) spousal petition (21PR8425). Manuel does not represent David, and Manuel never had his own enforceable claim to the money Carolyn allegedly stole – which is a prerequisite for any §850 discovery. (See *Estate of Linnick* (1985) 171 Cal.App.3d 752, 761-763.) There is little question that Audrey has a good faith basis for wishing to see the accounts in her capacity as David's personal representative, but for Manuel the need is less apparent. Since these cases are not consolidated for all purposes, Manuel's need is even further distanced.

Based on the foregoing, the Motion to Quash is GRANTED. The Clerk shall provide notice of this Ruling to the parties forthwith. Moving party to prepare the CCP §1019.5/CRC 3.1312 order thereon.

SILVEIRA MATTERS

21PR8357, 21PR8424, 21PR8425, 21PR8452, 22CV46053

MOTION TO DISMISS/ABATE/CONSOLIDATE

Appearances required. The Court is likely to grant one of the procedural requests as to 22CV46053 but wants to hear from all parties as to their thoughts on the request.